



CHAPTER vi.

An Act to confirm a Provisional Order made by the Minister of Transport under the Darlington Corporation (Transport &c.) Act 1925 relating to Darlington Corporation Trolley Vehicles. A.D. 1929.
 [26th July 1929.]

WHEREAS under the authority of section twenty-two of the Darlington Corporation (Transport &c.) Act 1925 the Minister of Transport has made the Provisional Order set out in the schedule to this Act annexed : 15 & 16 Geo. 5. c. cxvi.

And whereas a Provisional Order made by the Minister of Transport under the authority of the said section is not of any validity or force whatever until the confirmation thereof by Act of Parliament :

And whereas it is expedient that the Provisional Order made by the Minister of Transport under the authority of the said section and set out in the schedule to this Act annexed be confirmed by Act of Parliament :

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited as the Darlington Corporation Trolley Vehicles (Additional Routes) Order Confirmation Act 1929. Short title.

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Act, 1929.

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—
Confirma-
tion of
Order
in schedule.

2. The Order set out in the schedule to this Act annexed shall be and the same is hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full force and validity and the date of the same shall be the date of the passing of this Act.

SCHEDULE.

A.D. 1929.

DARLINGTON CORPORATION TROLLEY
VEHICLES (ADDITIONAL ROUTES).

*Order authorising the mayor aldermen and burgesses of
the borough of Darlington to use trolley vehicles upon
additional routes in the county borough of Darlington.*

1. This Order may be cited as the Darlington Corporation Short title.
Trolley Vehicles (Additional Routes) Order 1929 and the
Darlington Corporation (Transport &c.) Act 1925 the Darlington
Corporation Trolley Vehicles (Additional Routes) Order 1927
and this Order may be cited together as the Darlington
Corporation Transport Act and Orders 1925 to 1929.

2. In this Order the following expressions have unless the Inter-
subject or context otherwise requires the meanings hereinafter pretation.
assigned to them (namely) :—

“The Corporation” means the mayor aldermen and
burgesses of the borough of Darlington;

“The borough” means the borough of Darlington;

“The general rate fund” and “the general rate” mean
respectively the general rate fund and the general
rate of the borough or (until the date when the first
new valuation list made under Part II of the Rating
and Valuation Act 1925 comes into force in the
borough) the borough fund and borough rate of the
borough;

“Trolley vehicle” has the meaning assigned to it by
section 2 (Interpretation) of the Act of 1925;

“Trolley vehicle routes” means the routes upon which
the Corporation are by this Order authorised to work
and use trolley vehicles;

“The transport undertaking” means the Darlington Cor-
poration transport undertaking constituted by section
46 (Trolley vehicles omnibuses and light railways
to constitute Darlington Corporation transport under-
taking) of the Act of 1925;

“The Order of 1902” means the Darlington Light Railways
Order 1902;

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“The Act of 1925” means the Darlington Corporation (Transport &c.) Act 1925;

“The Order of 1927” means the Darlington Corporation Trolley Vehicles (Additional Routes) Order 1927.

Power to
use trolley
vehicles.

3. Subject to the provisions of this Order and of the Act of 1925 so far as such provisions are not inconsistent with or rendered unnecessary by the provisions of this Order the Corporation may use trolley vehicles upon the following trolley vehicle routes in addition to any routes upon which they are already authorised to use trolley vehicles (that is to say) :—

Route No. 1 Two furlongs or thereabouts in length commencing by a junction with Route No. 4 authorised by the Order of 1927 at the corner of Park Lane and Victoria Road and thence proceeding southwards along Park Lane and terminating by a junction with Route No. 9 authorised by the Act of 1925 in the last-mentioned street at its junction with Milner Road :

Route No. 2 Two furlongs three chains or thereabouts in length commencing by a junction with Route No. 5 authorised by the Order of 1927 at the corner of Grange Road and Blackwellgate and thence proceeding along Grange Road and Victoria Road and terminating by a junction with Route No. 8 authorised by the Act of 1925 in the last mentioned road at its junction with Feethams :

Route No. 3 Two furlongs and two chains or thereabouts in length commencing by a junction with Route No. 8 authorised by the Act of 1925 at the corner of Bedford Street and Victoria Road and thence proceeding southwards along Bedford Street and terminating at the southern extremity of Bedford Street :

Route No. 4 Nine chains or thereabouts in length commencing by a junction with Route No. 8 authorised by the Act of 1925 at the corner of Leafield Road and Clifton Road and thence proceeding eastwards along Leafield Road and terminating by a junction with Route No. 1 in the last mentioned road at its junction with Park Lane :

Route No. 5 Seven furlongs nine chains or thereabouts in length commencing by a junction with Route No. 6 authorised by the Act of 1925 at the corner of Geneva Road East and Yarm Road and thence proceeding southwards along Geneva Road East and terminating by a junction with Route No. 6 authorised by the Order of 1927 in the last-mentioned street at its junction with Neasham Road :

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(2) (a) The Corporation may also with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of this Order.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister of Transport.

(c) In order to secure repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge the revenue of the transport undertaking and the general rate fund and general rate.

(3) The provisions of this section shall not limit the powers conferred upon the Corporation by section 51 (Power to use one form of mortgage) of the Act of 1925.

Costs of
Order.

7. All costs charges and expenses of and incidental to the preparing and obtaining and confirming this Order or otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of money to be borrowed under the powers of this Order for that purpose.

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